

****Hospitals Cannot Use Consent to Publish Patient Images on Instagram****

Date: 27-11-2023

****Decision****

Public Authorities

Serious Criticism

Order

Supervision / Own Motion Case

Legal Basis for Processing

Images and Video

Handled by the Data Council

The Danish Data Protection Agency has, in an own motion case, assessed that Aarhus University Hospital (Region Midtjylland) cannot publish information about patients on Instagram within the framework of data protection law.

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****Summary****

On December 19, 2022, the Danish Data Protection Agency initiated an own motion case against Region Midtjylland as the data controller, concerning Aarhus University Hospital's use of Instagram to publish images of patients. The background for the case was an inquiry from a former patient at the hospital.

The Danish Data Protection Agency requested Region Midtjylland to respond to a number of questions – particularly regarding the legal basis for the processing and the hospital's compliance with the general data protection principles in this context.

After an investigation of the case, the Danish Data Protection Agency found that Region Midtjylland cannot use consent as a legal basis for processing, as there is an unequal relationship between the patient and the region/hospital. The Danish Data Protection Agency further found that the processing is not in accordance with the principles in Article 5, paragraph 1 of the General Data Protection Regulation.

On this basis, the Danish Data Protection Agency has issued an order to Region Midtjylland to delete posts containing health information about patients from the Instagram account within four weeks.

1. **Preliminary Remarks**

The Danish Data Protection Agency hereby returns to the case, where the agency on December 19, 2022, initiated an own motion investigation of Aarhus University Hospital's (AUH) publication of images of patients with accompanying information about the patients' health conditions on Instagram.

2. **Decision and Order**

The Danish Data Protection Agency finds – after the case has been presented to the Data Council – that Region Midtjylland's processing of personal data in connection with the publication of photos of patients on AUH's Instagram account is not in accordance with Article 9, paragraph 2, letter a, and Article 6, paragraph 1, letter a, of the General Data Protection Regulation, cf. Article 4, no. 11.

Furthermore, the Danish Data Protection Agency finds that the processing is not in accordance with the principles in Article 5, paragraph 1 of the General Data Protection Regulation.

On this basis, the Danish Data Protection Agency expresses serious criticism of Region Midtjylland. Additionally, the Danish Data Protection Agency, pursuant to Article 58, paragraph 2, letter d of the General Data Protection Regulation, issues an order to Region Midtjylland to delete posts containing health information about patients from the Instagram account auhdk.

The order includes all photos of identifiable patients that have been published on the account in question.

The deadline for compliance with the order is 4 weeks from today's date. Region Midtjylland is requested – within the same deadline – to inform the Danish Data Protection Agency that the order has been complied with.

The Danish Data Protection Agency points out that, according to Section 41, paragraph 2, no. 5 of the Data Protection Act, it is punishable to fail to comply with an order issued by the Danish Data

Protection Agency pursuant to Article 58, paragraph 2 of the General Data Protection Regulation. According to Section 41, paragraph 6, second sentence of the Act, public authorities can also be penalized.

Below follows a detailed review of the case and a justification for the Danish Data Protection Agency's decision.

3. **Case Presentation**

Based on a complaint from a citizen regarding a picture of the individual on AUH's Instagram account, the Danish Data Protection Agency initiated a more detailed investigation on December 19, 2022, against Region Midtjylland as the data controller for the processing of personal data on the Instagram account auhdk.

The Danish Data Protection Agency could, during this investigation, ascertain that information in the form of images, in some cases names and information, which directly or indirectly in several cases constitutes information about health conditions, had been published on AUH's Instagram account. The information primarily concerns physical persons, including children and young people, who can be directly identified from the posts.

The Instagram account continuously publishes images and videos of daily life at AUH. The images show patients, staff, and relatives and are shared as posts or in stories that either disappear after 24 hours or are saved as a highlight that can be accessed later.

The account, which has been active since June 2015, has more than 15,000 followers, and more than 1,400 posts have been shared. A review of the account also revealed that there were posts with images of and information about patients dating back to 2016.

Region Midtjylland has, by letters dated January 16 and March 16, 2023, responded to a number of questions from the Danish Data Protection Agency.

3.1.

Region Midtjylland has stated the following in its responses regarding the purpose of the posts on Instagram:

"The information on auhdk is processed with the purpose of informing the outside world about the hospital's activities. The posts focus on general information to the public regarding health and/or the hospital's daily operations. Often, the posts have a personal angle to make..."

"the communication is more present and relevant"

Furthermore, it appears from the region's "Guidelines for Loans - Instagram Takeovers," which the region has submitted in connection with responses to questions from the Data Protection Agency, that the purpose of the posts is to recruit new employees.

The guidelines also state that the region lends the Instagram account to various departments at the hospital (a so-called "takeover"). At least one post must be published daily during the individual departments' takeovers, which last for one week, and employees are encouraged to use hashtags and respond to any comments. Region Midtjylland has stated that the posts are primarily created by a limited group of employees in the hospital's communications department. However, it is the individual departments at the hospital that prepare the posts published during the weekly "takeovers," where different departments at the hospital are followed.

3.2.

Region Midtjylland has generally stated that posts containing information about citizens, including patients, are published based on the legal basis of Article 6, paragraph 1, letter a, and Article 9, paragraph 2, letter a of the General Data Protection Regulation (GDPR). Consent is obtained in writing prior to the publication of the post, and the granting of consent does not affect the healthcare treatment offered to the patient. In selecting patients, consideration is given to the individual's physical health and capacity, and the patient is given time to consider before signing the consent declaration. The patient is also given the opportunity to approve the content of the post. Region Midtjylland has stated that the criterion of voluntariness is met, as patients have a genuine free choice regarding whether they wish for their personal data to be published on Instagram. In this context, Region Midtjylland has indicated that the region – taking into account the trust relationship between the hospital/region and the patients

– has not been able to identify a more appropriate legal basis for the processing in question.

3.3.

Regarding the principle in Article 5, paragraph 1, letter a of the GDPR concerning legality, fairness, and transparency, Region Midtjylland has stated that the processing is lawful, as it is based on consent from the data subjects. The criteria of fairness and transparency are also observed, as the processing is based on consent. This should be viewed in light of the fact that the publication of information is based on voluntariness, and that the publication always occurs in agreement with the patient.

Region Midtjylland has stated regarding the principle of data minimization in Article 5, paragraph 1, letter c of the GDPR that no more personal data is processed than what is necessary for the purpose. To limit the processing of personal data, the region is attentive to whether information about personal identification numbers, names, or other details appears on screens, records, and patient wristbands in the images. There is a general focus on not publishing images of patients in situations that may seem intrusive, crossing boundaries, or otherwise inappropriate. Furthermore, it should be emphasized in the proportionality assessment that the publication of the information is based on voluntariness and consent.

As for the principle of storage limitation in Article 5, paragraph 1, letter e of the GDPR, it is stated that the principle is observed in that the data subject has the opportunity to request deletion. If the data subject requests this, the post is removed from Region Midtjylland's own social media. Region Midtjylland has stated that the region had not determined a general deletion deadline for processing information on social media at the time the Data Protection Agency initiated the investigation.

4. Legal Basis

4.1.

The processing of personal data may take place if one of the conditions in Article 6, paragraph 1 of the GDPR is met, while the processing of health data is generally prohibited. However, processing of health data may still occur if the data controller can identify an exception in Article 9, paragraph 2 of the Regulation.

It follows from Article 9, paragraph 2, letter a of the GDPR that the processing of health data – as an exception to the prohibition in paragraph 1 – may take place if the data subject has given explicit consent to the processing of their personal data for one or more specific purposes.

Consent from the data subject is defined in Article 4, number 11 of the GDPR as: "Any voluntary, specific, informed, and unambiguous indication of the data subject's wishes, by which the data subject, by a statement or clear affirmative action, signifies agreement to the processing of personal data relating to them."

The European Data Protection Board (EDPB) has adopted guidelines on consent, where the understanding of the Regulation's definition of consent – including the requirement of voluntariness – is described. According to the EDPB's guidelines, consent cannot generally be considered to be freely given if the data subject does not have a genuine free choice. Any form of undue pressure or influence on the data subject's free will renders the consent invalid.

Furthermore, it follows from recital 43 of the GDPR: "[...] In order to ensure that consent is given freely, consent should not constitute a valid legal basis if it is not given freely."

****Legal Basis for the Processing of Personal Data in a Specific Case****

if there is a clear imbalance between the data subject and the data controller, particularly if the data controller is a public authority, and it is therefore unlikely that consent has been given voluntarily, taking into account all the circumstances characterizing the specific situation."

In accordance with this, it follows from the EDPB's guidelines on consent that there is only a narrow scope for public authorities' use of consent.

4.2.

To be valid, consent must also meet the conditions set out in Article 7 of the Data Protection

Regulation.

It follows from Article 7, paragraph 1 of the Data Protection Regulation that if processing is based on consent, the data controller must be able to demonstrate that the data subject has given consent to the processing of their personal data.

This provision entails that the data controller has an explicit obligation to demonstrate that a data subject has given valid consent to the processing of their personal data. The requirement implies not only that the data controller can demonstrate that the data subject has given consent to the processing but also that the obtained consent meets all relevant criteria for valid consent – thus also the requirement of voluntariness.

4.3.

It follows from Article 5, paragraph 1, letter a of the Data Protection Regulation that personal data must be processed lawfully, fairly, and in a transparent manner in relation to the data subject ("lawfulness, fairness, and transparency").

Furthermore, it is stated in Recital 39 of the Data Protection Regulation, among other things, that personal data should only be processed if the purpose cannot reasonably be fulfilled by other means.

5. Justification for the Data Protection Authority's Decision

5.1.

Processing of personal data, for example, images with accompanying text, can occur if one of the conditions in Article 6, paragraph 1 of the Data Protection Regulation is met, while the processing of health data is generally prohibited.

However, processing of health data can occur if the data controller can identify an exception in Article 9, paragraph 2 of the Regulation. In addition, the fundamental principles for processing personal data in Article 5 must be fulfilled.

Based on the information in the case, the Data Protection Authority must assume that a number of personal data about identifiable individuals, including information about patients covered by Article 6 of the Data Protection Regulation as well as information covered by Article 9 concerning special categories of personal data in the form of health data, are processed on AUH's Instagram account. In assessing whether the information in question constitutes health data, the Data Protection Authority has, among other things, emphasized that the images in question are in several cases accompanied by information about the hospital department and information about what the patient is suffering from or needs to be examined for. In relation to images of patients during "takeovers," it is possible to specifically deduce information about the department where the patient is hospitalized or receiving treatment, as the name of the individual department being followed is provided during a takeover. The images of the patients are publicly available and can be accessed by anyone, regardless of whether they have an Instagram account.

Consent as a basis for processing is stated in Article 6, paragraph 1, letter a of the Data Protection Regulation.

It follows from the requirement for explicit consent under Article 9, paragraph 2, letter a of the Regulation, as well as the requirement for demonstration under Article 7, paragraph 1, that there must be no doubt about the validity of the consent.

In assessing whether consent meets the conditions in the provision in Article 4, no. 11, the conditions for the validity of consent must be evaluated based on the relevant circumstances at the time of obtaining consent. This means that the data subject's situation must be taken into account, among other things, in the question of whether consent can be considered voluntary.

The Data Protection Authority finds that the circumstances in which a patient typically finds themselves, when they are generally in a vulnerable situation, such as when they are hospitalized or undergoing treatment at a hospital, should be given significance.

It is the Data Protection Authority's assessment that such vulnerability creates an inequality between the patient and the hospital and the hospital's staff, which may entail a risk that the patient may feel pressured by a request for consent.

It may also affect the patient's experience of having a genuine free choice or constitute pressure for

the patient that Aarhus University Hospital is a public authority that offers a healthcare service that the data subject needs.

In assessing whether public authorities can use consent as a basis for processing, it is considered whether the data controller and the data subject can be regarded as equals in the specific situation and whether the data subject feels they have a genuine free choice.

The Data Protection Authority has attached importance to the fact that the starting point for public authorities' processing of personal data is that consent under the Data Protection Regulation cannot be used as a basis for processing due to the inherent unequal relationship between the data controller and the registered citizen. The Data Protection Authority has not found grounds to deviate from this starting point, as the data controller and the data subject in the specific situation cannot be considered equal.

The statement from the Central Denmark Region regarding that there in...

****Selection of Patients****

The selection of patients takes into account the individual's physical health and surplus, as well as providing the patient with time for consideration before the consent declaration is signed, and that there is an opportunity to approve the content of the post, cannot lead to a different result.

In a situation such as the present, there are, in the opinion of the Data Protection Agency, heightened requirements for the assessment of consent as a basis for the processing of personal data about patients, referring to the category of the information that the processing concerns, the intrusive nature of the processing in the form of publication, and the circumstance that there is a patient relationship. It is therefore the Data Protection Agency's assessment that the condition that consent under Article 4, No. 11 of the Data Protection Regulation must be voluntary cannot be considered fulfilled.

On this basis, the Data Protection Agency finds that the publication of personal data about patients on AUH's Instagram account is not in accordance with Article 9, paragraph 2, letter a, and Article 6, paragraph 1, letter a, in conjunction with Article 4, No. 11 of the Data Protection Regulation.

The Data Protection Agency notes that a purpose of informing the public about the hospital's operations and recruiting employees can be achieved in a way that is less intrusive to the fundamental rights of the affected individuals, particularly their right to respect for privacy and to the protection of personal data. The Data Protection Agency therefore finds that the processing of personal data by the Central Denmark Region is also not in accordance with the principles of Article 5, paragraph 1 of the Data Protection Regulation.

****5.2.****

The Data Protection Agency finds grounds to express serious criticism of the Central Denmark Region's processing of personal data. Furthermore, the Data Protection Agency, pursuant to Article 58, paragraph 2, letter d of the Data Protection Regulation, issues an order to the Central Denmark Region to delete posts containing health information about patients from the Instagram account auhdk. The order includes all photos of identifiable patients that have been published on the relevant account. The deadline for compliance with the order is 4 weeks from today's date. The Central Denmark Region is requested – within the same deadline – to notify the Data Protection Agency that the order has been complied with.

The Data Protection Agency points out that it is punishable under Section 41, paragraph 2, No. 5 of the Data Protection Act to fail to comply with an order issued by the Data Protection Agency pursuant to Article 58, paragraph 2 of the Data Protection Regulation. According to Section 41, paragraph 6, second sentence of the law, public authorities can also be punished.

****5.3.****

The Data Protection Agency adds, in conclusion, that the agency has not addressed questions regarding violations of the rules on confidentiality in the Health Act in its decision. As for compliance with the rules on retention under Article 5, paragraph 1, letter e of the Data Protection Regulation, the Data Protection Agency encourages the Central Denmark Region to generally be aware of this, so that

general deadlines for the retention of personal data are established where such deadlines do not follow from health law regulations.

[1] Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)

[2] By using highlights, it becomes possible to save the stories that otherwise disappear after 24 hours. The use of highlights means that the stories can still be accessed by other users after 24 hours.

[3] EDPB Guidelines 5/2020 on Consent under Regulation 2016/679, section 3.1, pp. 7-14 and the Data Protection Agency's guidance on consent, May 2021, section 2.3, pp. 5-10.

[4] EDPB Guidelines 5/2020 on Consent under Regulation 2016/679, section 5.1, point 107.